South Coast British Columbia Transportation Authority or TransLink Security Management Ltd. | Coast Mountain Bus Company Ltd. | British Columbia Rapid Transit Company Ltd. | West Coast Express Limited

# ENTERPRISE SERVICES CONTRACT

*Contract No.:* ♦
*Reference No.:* Doc5347186852

**Between:**

| | | |
|---|---|---|
| **South Coast British Columbia Transportation Authority**<br>#400 – 287 Nelson's Court<br>New Westminster, BC V3L 0E7<br>("TransLink")<br>Contact: [Name, title]<br>Phone: 778-375-7500<br>Email: ♦ | *and* | **[Contractor's Legal Name]**<br>[Address]<br>[City, Prov Postal]<br><br>(the "Contractor")<br>Contact: [Name, title]<br>Phone: ♦<br>Email: ♦ |
| A copy of any formal inquiries related to this Agreement and any notices issued pursuant to Section 22 of this Agreement must also be sent: email: procurement@translink.ca | | CRA Business Number: ♦ |

1. ***Definitions*** - In this Agreement, the following terms have the meanings expressed below:

(a) "**Agreement**" means this Enterprise Services Contract and any schedules attached hereto.

(b) "**Business Day**" means a day, other than a Saturday or Sunday, on which provincial government offices are open for regular business in British Columbia.

(c) "**Expenses**" means the reimbursable expenses, if any, set out in Schedule B.

(d) "**Fees**" means fees for providing the Services, calculated and payable as set out in Schedule B.

(e) **"FOIPP Act"** means the *Freedom of Information and Protection of Privacy Act (British Columbia)* including any regulation made under it.

(f) **"Personal Information"** means recorded information about an identifiable individual, other than Contact Information, collected, created or accessible by the Contractor as a result of this Agreement or any previous agreement between TransLink and the Contractor dealing with the same subject matter as this Agreement.

(g) "**Services**" means Enterprise Data and AI Strategy Development as more particularly identified in Schedule A and any incidental duties and requirements reasonably inferred from those services.

(h) "**Start Date**" means **[Start Date]**.

(i) "**Term**" means the period commencing on the Start Date and ending **[End Date]** unless terminated earlier in accordance with this Agreement or renewed in accordance with Section 2.

(j) "**TLE Entity**" means any of TransLink or any of its subsidiaries, affiliates or contractors who provide services in relation the transit system (as may be further defined in Schedule A).

(k) "**TLE Representative**" means the TLE Entity contact person identified above or such other person designated by the TLE Entity from time to time.

(l) "**Work Product**" means all inventions, discoveries, concepts, designs, drawings, improvements to existing technology, processes, procedures, computer programs and techniques, models, plans, specifications, data, tapes, programs, documents, memoranda, reports, work-in-progress and other records, in any form whatsoever created, reduced to practice or fixed in a tangible medium of expression by or on behalf of the Contractor, whether alone or with others, as part of or ancillary to the performance of the Services.

2. ***Renewal*** – This Agreement may be extended for two additional terms of one (1) year each, at TransLink's discretion. The maximum Term of this Agreement shall not exceed five (5) years. If this Agreement is renewed as

provided in this section 2 then the terms and conditions of this Agreement will continue to apply during each extension Term**.** Notwithstanding any other term of this Agreement, if a specific deliverable (or deliverables) is in the process of being delivered when this Agreement ends, then the terms and conditions of this Agreement will continue to apply until such time as the delivery of the specific deliverable is completed.

3. ***Engagement*** – TransLink hereby retains the Contractor to perform the Services during the Term in accordance with the terms and conditions of this Agreement. The Contractor agrees to perform the Services in a competent, diligent and efficient manner to the full satisfaction of TransLink and any TLE Entity and within the timelines and by the due dates set out in Schedule A; provided that where there are no specified timelines or dates, the Contractor will provide the Services with due expediency as determined by TransLink, acting reasonably. The Contractor will perform the Services using any key representatives/employees identified in Schedule A, as well as its own forces, and any sub-contractors approved in writing by TransLink. The Contractor will be responsible for the professional quality, technical accuracy, timely completion and coordination of all reports and other services furnished by the Contractor. The Contractor will report to the TLE Representative. All communication between the Contractor and a TLE Entity regarding this Agreement, including the performance of the Services, shall be directed to the TLE Representative.

4. ***Expertise*** – The Contractor warrants it has the skills, expertise, experience and qualifications necessary to perform the Services in a competent and professional manner to the standard of care, skill and diligence normally provided in performing similar services by experienced, reputable and professional contractors/consultants. The Contractor further warrants that any other persons providing the Services also have the requisite skills, expertise, experience and qualifications. To the extent the Services are of a professional nature, the Services will be performed by a fully qualified member in good standing of the appropriate professional body who is registered to practise in British Columbia.

5. ***Compliance*** - The Contractor covenants, as a material provision of this Agreement, it will comply, at its own expense, with all codes, statutes, by-laws, regulations or other laws in force in British Columbia during the Term and, for the purposes of privacy protection, despite any conflicting provision of the law of any jurisdiction outside of Canada. Further, the Contractor represents and warrants that, to the best of its knowledge, none of the materials incorporated into the Work Product, used in the performance of the Services, or used in connection with the Contractor's other obligations under this Agreement have been produced by means involving forced labour or the exploitation of children, and the Contractor employs responsible business practices and uses reasonable efforts to ensure the foregoing. Upon request, the Contractor will provide TransLink and any TLE Entity with reasonable evidence of its due diligence measures in connection with the foregoing representation and warranty and will also promptly notify TransLink and any TLE Entity of any suspected or actual instances of forced labour or child labour within its supply chains as relevant to this Agreement. The Contractor will obtain, and, as required, advise and assist TransLink and any TLE Entity in preparing any reports and obtaining, any permits, licenses or other authorizations necessary for or related to the Services. The Contractor will further comply with policies, procedures and instructions, if any, provided by TransLink or any TLE Entity. TransLink, any TLE Entity or any of their authorized representatives may inspect and audit the Contractor's compliance with all codes, statutes, by-laws, regulations or other laws, from time to time as TransLink or such TLE Entity sees fit.

6. ***Safety and Workers' Compensation*** – The Contractor will use best efforts to ensure and is responsible for ensuring the safety of persons providing, or affected by the provision of, the Services. The Contractor will perform the Services in accordance with the representations made in any proposal or safety plan submitted to TransLink. The Contractor must, throughout the Term:

(a) for Services performed in the Province of BC, and where the Contractor is:

i. an employer:

1. be registered and in good standing with the Workers' Compensation Board (WorkSafeBC); or

2. if deemed ineligible for registration by WorkSafeBC, be registered and in good standing with the workplace safety entity that has jurisdiction over the Contractor;

ii. **NOT** an employer:

A. obtain and maintain Personal Optional Protection coverage available through WorkSafeBC; or

B. obtain and maintain sufficient workplace disability insurance with such coverage as is acceptable to TransLink;

(b) for Services **NOT** performed in the Province of BC, and where the Contractor is:

i. an employer: be registered and in good standing with the workplace safety entity that has jurisdiction over the Contractor;

ii. **NOT** an employer: obtain and maintain sufficient workplace disability insurance with such coverage as is acceptable to TransLink, if so requested by TransLink;

(c) ensure persons providing the Services are covered under Section 6(a) or (b) above; and

(d) upon request from TransLink, provide a statement from WorkSafeBC (or the applicable workplace safety entity), or if Section 6(b)(ii) applies a certificate of workplace disability insurance, demonstrating evidence of compliance with this provision.

7. ***Independent contractor*** – The Contractor confirms it is an independent contractor and not an employee or agent or partner of any TLE Entity, and will not in any manner commit or purport to commit any TLE Entity to any obligation or undertaking, except with express written authorization of TransLink. The Contractor will not assert or do anything that would result in the Contractor being considered an employee of any TLE Entity. If, despite the foregoing, any person, governmental authority or agency characterizes or deems the Contractor to be a worker or employee of any TLE Entity, which then obligates such TLE Entity to make payments or remittances with respect to or on behalf of the Contractor (including but not limited to income taxes, Canada Pension Plan and employment insurance contributions in addition to the Fees and Expenses set out in this Agreement), the Contractor hereby agrees to reimburse such TLE Entity on account of any such payments or remittances, including any penalties assessed thereon.

8. ***Payment of Fees and Expenses*** – Subject to verification by a TLE Entity of the validity of the Fees and Expenses, such TLE Entity will pay the Fees (less the holdback, if any, identified in Schedule B) and Expenses, in Canadian funds, within 30 days of receipt of an invoice that complies with the requirements in this Agreement. Each invoice shall set out the Fees and Expenses in accordance with Schedule B. In no event will the Fees and Expenses claimed exceed any limits set out in Schedule B. The Contractor is not entitled to receive or claim any other remuneration from any TLE Entity. No payment will be made by any TLE Entity in respect of any costs incurred or time expended by the Contractor in remedying errors or omissions of the Contractor. As required by and in accordance with the *Income Tax Act (Canada),* if the Contractor is a non-resident of Canada and performs any of the Services in Canada, the particular TLE Entity will withhold the prescribed amount of tax from each payment and remit this amount to the Canada Revenue Agency. The TLE Entity shall be entitled to set off any amounts payable to such TLE Entity by the Contractor under this Agreement or any other contract against any amounts payable by such TLE Entity to the Contractor under this Agreement.

9. ***Default and Early Termination***

(a) If the Contractor fails to perform the Services in accordance with this Agreement, or otherwise fails to comply with the requirements of this Agreement, TransLink may:

i. give written notice to the Contractor requiring that the Contractor remedy such default within such reasonable time as may be specified in such notice. If the Contractor fails to correct the default in the time specified in such notice, TransLink may, without prejudice to any other right or remedy it may have:
   A. correct such default, and any other work by any other of TransLink's contractors that needs to be corrected as a result of such default, at the Contractor's expense; and/or
   B. terminate this Agreement in whole or in part; or
ii. exercise its rights under Section 9(b)(ii)(A).

(b) Prior to completion of the Services, TransLink may terminate this Agreement:

i. upon 30 days' written notice to the Contractor; or
ii. by written notice to take effect immediately upon receipt of such notice by the Contractor if:

A. the Contractor breaches any of its obligations under this Agreement;
B. the Contractor becomes insolvent, bankrupt or has a receiver appointed or makes any proposal under the *Bankruptcy and Insolvency Act* (Canada);
C. the Contractor, for any reason, becomes incapable of providing the Services;
D. the Contractor comes under the direct or indirect control of any corporation or person who does not control it at the date of execution of this Agreement; or
E. otherwise as permitted by this Agreement.

In the event of any early termination, the Contractor will not be entitled to any compensation other than for Services rendered up to and including the date of termination, and the Contractor hereby agrees, save as hereinbefore provided, the Contractor will not be entitled to claim or receive any other remuneration, compensation or payment whatsoever from any TLE Entity by reason of the termination of this Agreement.

10. ***Records, Inspection and Audit*** – During the Term and for five (5) years thereafter or such later date as advised by TransLink (notice of any such date will be provided to the Contractor), the Contractor shall:

(a) establish, maintain and preserve proper and accurate financial records and books of account, in accordance with generally accepted accounting principles, with respect to any time and expense which TransLink is or has been required to pay, either directly or indirectly, as a result of performance of the Services. The accounts and records shall include, without limitation, all working papers and all original invoices, receipts, vouchers, and proofs of payment relating to costs incurred or time expended;

(b) keep open for inspection and audit by TransLink, any level of government or any governmental authority, or any of their authorized representatives (including but not limited to an independent auditor), during business hours, the accounts and records described above and such level of government or such governmental authority may take copies and extracts therefrom;

(c) provide to the authorized representatives or independent auditor of TransLink or any level of government or any governmental authority, at no cost to such level of government or such governmental authority or to TransLink:

i. appropriate space at its office satisfactory to TransLink, such level of government or such governmental authority; and
ii. access to any accounting, financial and other business records and documents relating to the Services, including any accounts, records, invoices, receipts and vouchers and any related procedures as may be required by TransLink, or such level of government or such governmental authority;

(d) authorize and require its auditor to provide to the authorized representatives or independent auditor of TransLink or any level of government or any governmental authority reasonable access to the Contractor's auditor's working papers (as such working papers are described and defined in the Canadian Institute of Chartered Accountants Handbook) relating to the Services and to any accounting, financial and other business records and documents (including any accounts, records, invoices, receipts and vouchers in respect of the Services) and any related procedures, such access to be provided at no cost to TransLink, such level of government or such governmental authority, including the right to take extracts from such working papers;

(e) provide to TransLink, any level of government or any governmental authority or any of their authorized representatives such other information as TransLink, such level of government or such governmental authority, or any of their authorized representatives considers relevant in connection with the audit and inspection referred to above; and

(f) in no way limiting the generality of the foregoing, permit TransLink, any level of government or any governmental authority or any of their authorized representatives at all reasonable times to inspect the work being performed by the Contractor and to inspect and carry out an audit of any records and accounts respecting the Services.

Any error in a claim for payment or the amount of a payment disclosed on audit will be adjusted between the parties.

11. ***Non-Waiver*** – Payments made to the Contractor on account of the Services shall not be construed as a waiver of any right of claim any TLE Entity may have against the Contractor arising out of the Contractor's failure to perform the Services in accordance with this Agreement.

12. ***Ownership of Work Product*** – All right, title and interest in the Work Product shall be owned by TransLink and the Contractor does hereby assign and transfer the Work Product, including the intellectual property rights therein, vested and contingent, to TransLink. The Contractor hereby waives any moral rights the Contractor may have in the Work Product and shall ensure its employees, contractors and sub-contractors also waive any moral rights they may have in the Work Product. The Contractor agrees to execute any documents or do any acts reasonably required by TransLink to perfect its ownership. TransLink shall have full control over all applications for patents or other legal protection for the Work Product. The Contractor shall provide to TransLink upon request, and otherwise upon completion of the Services or the termination of this Agreement, the originals and all copies of the Work Product, whether fully or partially completed. Despite the foregoing and provided the Work Product does not contain any Personal Information, the Contractor shall be entitled to retain one copy of the Work Product for its own records for auditing purposes and to meet its professional obligations, subject always to the confidentiality obligations set out in section 16.

13. ***Insurance*** – The Contractor will maintain during the Term the insurance, if any, set out in Schedule C, and such other insurance as may be reasonably required by TransLink. If the Contractor fails to comply with the insurance requirements, TransLink may obtain and maintain the required insurance coverage and deduct the cost thereof from any monies payable to the Contractor. The Contractor shall include the same insurance requirements in any agreement with any sub-contractors.

14. ***Liability and Indemnity*** - Despite any insurance coverage by TransLink, the Contractor hereby agrees to indemnify and save harmless all TLE Entities, and their directors, officers, and employees from and against all claims, loss, damages, demands, complaints (including, without limitation, complaints pursuant to human rights legislation), actions (including, without limitation, wrongful dismissal actions), suits, liabilities and/or costs (including actual legal fees and disbursements), arising from or caused by any breach of contract, acts, errors, omissions or negligence of the Contractor, its directors, officers, employees, agents and/or contractors or sub-contractors in relation to this Agreement including breach of applicable laws by the Contractor, unless such claim, loss, damage, demand, complaint, action, suit, liability and/or cost is the result of acts, errors, omissions or negligence of any TLE Entity, and their directors, officers, and employees.

15. ***Freedom of Information*** - The Contractor acknowledges TransLink and certain TLE Entities are subject to the *FOIPP Act* and this Agreement and any records provided to any TLE Entity may be subject to public disclosure under the *FOIPP Act*.

16. ***Confidentiality*** – The Contractor will treat as confidential any data or information (including any Personal Information) (collectively, "Confidential Information") communicated to or acquired by the Contractor (whether by or from any TLE Entity or otherwise) or prepared by the Contractor (or any sub-contractor) in the course of carrying out the Services, will not use the Confidential Information except as necessary to perform the Services and will not disclose the Confidential Information to any person except to its employees and permitted subcontractors on a need to know basis and who are advised of the confidentiality obligations herein. Confidential Information, including any records containing the same, will be and remain the property of the particular TLE Entity and will be returned to such TLE Entity or destroyed by the Contractor upon request and otherwise upon completion of the Services or the termination of this Agreement, except as expressly permitted in section 12 and provided that the Contractor shall not be in violation of the foregoing to the extent that the Confidential Information is stored in its automatic computer back-up systems (which Confidential Information shall remain subject to the restrictions herein). Confidential Information shall not include any data or information that: (a) is already in the public domain or becomes in the public domain through no act or fault of the Contractor or its sub-contractors; or (b) was or is received by the Contractor from a third party who is not under a duty of confidentiality to TransLink. The Contractor will not be liable for disclosure of Confidential Information where such disclosure is required by law or a governmental authority. The Contractor acknowledges and agrees that unauthorised use or disclosure of Confidential Information may cause irreparable harm to TransLink, the particular TLE Entity and others and in the event of such unauthorised disclosure or use, any TLE Entity will be entitled to obtain injunctive relief against the Contractor without prejudice to any other rights it may have in respect of this Agreement or at law or in equity.

17. ***Access to Personal Information***– In no way limiting the generality of section 16, if, for the purposes of performing the Services, the Contractor receives or has access to Personal Information in any TLE Entity's custody

or control or collects Personal Information on behalf of any TLE Entity, the Contractor will comply with the provisions of Schedule D. In the event of any conflict between Schedule D and section 16, Schedule D shall take precedence. If the Contractor accesses or has the ability to access Personal Information and such access is not required to perform the Services, the Contractor will immediately notify the particular TLE Entity of such accessibility, the extent of such access, and any unauthorized access, whether inadvertent or otherwise. The Contractor will further advise such TLE Entity of the steps it has taken or will take to address, or prevent recurrence of, the non-compliance or anticipated non-compliance.

18. ***No Promotion of Relationship*** – The Contractor shall not disclose or promote its relationship with TransLink or any TLE Entity, including by means of any verbal declarations or announcements and by means of any sales, marketing or other literature, letters, client lists, press releases, brochures or other written materials, without the express prior written consent of TransLink (except as may be necessary for the Contractor to perform its obligations under this Agreement). Furthermore, the Contractor undertakes not to disclose or promote its relationship with any TLE Entity in any communication or manner whatsoever as a basis to create an association, express or implied, between the Contractor and such TLE Entity.

19. ***Intellectual Property Rights*** – The Contractor warrants and represents the Work Product developed and provided under this Agreement will not infringe any copyright, trademark, trade secret and other intellectual property rights of any third party.

20. ***Conflict of Interest***

(a) During the Term, the Contractor will not perform a service for or provide advice to any person where the performance of the service or the provision of the advice may or does give rise to a conflict of interest between the obligations of the Contractor to TransLink or any particular TLE Entity under this Agreement and the obligations of the Contractor to such other person.

(b) The Contractor will not offer or provide any gifts or personal benefit of a value greater than $100.00 to any director, officer, or employee of any TLE Entity. Except as disclosed in writing to TransLink prior to the signing of this Agreement, the Contractor does not have any knowledge that any director, officer or employee of any TLE Entity or an Associate of them (a) has more than a 10% ownership interest in the Contractor, or (b) has or is entitled to have any interest in this Agreement or any benefit arising therefrom. "Associate" means (a) a spouse, (b) a parent, sibling, son or daughter, or the spouse of any one of them, (c) a relative who lives in the person's home, (d) a company in which a person owns shares carrying more than 10% of the voting rights attached to all shares of the corporation, (e) a person's business partner, or (f) a trust or estate of which a person is one of the main beneficiaries or for which the person serves as a trustee.

21. ***Disputes*** – If a dispute arises under this Agreement, either party may request the other party to appoint representatives to meet and attempt to resolve the dispute either by direct negotiations or mediation. Unresolved disputes shall be settled by arbitration under the *Arbitration Act (British Columbia).*

22. ***Notice*** – Except as otherwise expressly permitted in this Agreement, any notice that a party is required or permitted to give must be in writing and, to be effective, must be given by personal delivery, regular mail or email addressed to and sent to the party at the property address or email address set out on page 1, or such other property address or email address as either party may specify in writing. In the event of a postal strike, notice must be given by personal delivery or email. Any notice given will be deemed to be received if delivered, when delivered, and if mailed by regular mail, seven (7) business days after the time of mailing at any Canada Post Office, British Columbia. Any notice sent by email is deemed to be received the date it is sent, and is only effective if it is acknowledged by the receiving party within 24 hours by return email to the email address of the party sending the notice, provided that if the 24 hour period ends on a day that is not a Business Day, the 24 hour period will be suspended for the duration of the non-Business Day(s) and resume on the first Business Day immediately following the last non-Business Day. A machine generated or other automated email response (including, but not limited to a "read receipt") is not effective acknowledgement for the purposes of this section. If an email notice is not acknowledged by the receiving party in accordance with the time periods set out above, the party giving notice must then give such notice in writing by personal delivery or regular mail in accordance with this section.

23. ***Governing Law*** – This Agreement will be governed by and construed in accordance with the laws of British Columbia and of Canada. The parties consent to the jurisdiction of the courts of the Province of British Columbia.

24. ***Assignment*** – The Contractor shall not assign, sub-contract or transfer this Agreement in whole or in part without the written consent of TransLink. In order to protect Personal Information and comply with the spirit and intent of the *FOIPPA Act,* TransLink may refuse to any assignment, sub-contract or transfer to a non-Canadian entity and such refusal shall not be construed as unreasonable. TransLink may at any time assign, transfer or sub-contract this Agreement in whole or in part to any person, firm or corporation.

25. ***Survival on Termination*** – Sections 10 (*Records, Inspection and Audit)*, 12 (*Ownership of Work Product)*, 14 (*Liability and Indemnity)*, 15 (*Freedom of Information),* 16 *(Confidentiality)* and 17 *(Access to Personal Information)* will survive the expiration or termination of this Agreement.

26. ***Time*** – Time is of the essence of this Agreement.

27. ***Entire Agreement*** – This Agreement constitutes the entire agreement between the parties with respect to the Services and supersedes all earlier understandings, communications, representations and agreements, whether oral or in writing. No modification of this Agreement will have any effect unless in writing and signed by the parties. Any term or condition contained in any report, invoice, claim, statement or other record submitted by the Contractor and in conflict with the terms of this Agreement shall be rejected automatically by TransLink without notice.

28. ***Schedules*** - The attached schedules are an integral part of this Agreement and are hereby incorporated into this Agreement as a part thereof. The parties may from time to time by agreement amend any of the schedules and such amended schedule when signed by both parties shall be substituted for the previous schedule effective from the date set out in such amended schedule.

29. ***Enurement*** – This Agreement will be binding upon and will enure to the benefit of the parties hereto, their respective heirs, executors, administrators, successors and permitted assigns.

30. ***Validity of Provisions*** – If any provision in this Agreement is found to be invalid or unenforceable, that provision shall be severed from this Agreement and the remainder of this Agreement shall remain in full force and effect.

31. ***Waiver*** – Failure to enforce a provision of this Agreement is not a waiver of that provision nor does it affect any right a party may have to enforce the provision or to consider the failure a breach of this Agreement. A waiver must be express and in writing before it has legal effect.

32. ***Counterparts*** – This Agreement may be executed by the parties in counterparts and delivered by electronic transmission, each of which shall be deemed to be an original and both of which together shall be deemed to be one and the same instrument.

WHEREAS the parties have executed this Agreement on the date set out below.

| **SOUTH COAST BRITISH COLUMBIA TRANSPORTATION AUTHORITY** | **[CONTRACTOR'S LEGAL NAME]** |
|---|---|
| *Signature* *Date*<br>*Name:*<br>*Title:* | *Signature* *Date*<br>*Name:*<br>*Title:* |
| *Signature* *Date*<br>*Name:*<br>*Title:* | *Signature* *Date*<br>*Name:*<br>*Title:* |

*The following schedules are attached to and form part of this Agreement:*

*Schedule A – Services*

*Schedule B – Fees and Expenses*
*Schedule C – Additional Terms and Conditions*
*Schedule D – Privacy Protection*
*Schedule E – Confidentiality / Non-Disclosure Agreement*
*Schedule F – Service Level Agreement*

**SCHEDULE A**

**SERVICES**

## 1.0 SERVICES TO BE PERFORMED

1.1 Except as otherwise provided in this Schedule, the Contractor must provide all equipment, supplies and facilities necessary to perform the Services.

1.2 TransLink and any TLE Entity reserves the right to add a service level agreement (terms to be mutually agreed to by both parties) to this Agreement during the Term.

1.3 The Contractor will, to the satisfaction of TransLink and any TLE Entity, perform the following Services in accordance with the Service Level Agreement (SLA) set out in Schedule F:

♦
1.3.1

## 2.0 TLE ENTITIES

2.1 TLE Entities include, but are not limited to, the following:

- British Columbia Rapid Transit Company Ltd. (BCRTC)
- West Coast Express Ltd. (WCE)
- Coast Mountain Bus Company Ltd. (CMBC)
- South Coast British Columbia Transportation Authority (TransLink)
- TransLink Security Management Ltd. (TSML)

2.2 TransLink may. at its sole discretion, add to or modify the list of TLE Entities to this Agreement at any time.

## 3.0 CONTRACTOR'S KEY REPRESENTATIVES AND EMPLOYEES

3.1 The Services will be performed on behalf of the Contractor by the following key representatives/employees ("Key Personnel"):

| Name | Position / Title |
|---|---|
| ♦ | ♦ |
| ♦ | ♦ |

3.2 TransLink has entered into this Agreement in reliance on and with the expectation that Key Personnel will be engaged in the provision of the Services in their specified roles and with the expectation of reasonable continuity in the Key Personnel. Changes to any of the Key Personnel (or their specified roles) shall not be made without the prior written consent of TransLink or a TLE Entity in its sole discretion. The Contractor shall:

3.2.1 ensure that the Key Personnel give the performance of the Services sufficient attention in order to perform the Services in compliance with this Agreement;

3.2.2 if any of the Key Personnel are unable to perform their specified role for any reason, immediately notify TransLink and the TLE Entity, propose a substitute individual to TransLink and submit the resume of such substitute to TransLink to illustrate to TransLink's satisfaction, that the proposed substitute has qualifications, experience and skills at least equal to that of the Key Personnel being replaced before the such substitute is designated as Key Personnel within Contractor's project team.;

3.2.3 manage the knowledge transfer between incumbent Key Personnel and substitute or new Key Personnel to commence and continue the performance of the Services including all orientation, education and training.

3.3 Any change to Key Personnel shall be at Contractor's cost and at no additional cost to TransLink and the TLE Entity.

3.4 The Contractor acknowledges and agrees that breach of Section 2.2 above may cause TransLink and/or the TLE Entity to incur internal and third-party costs arising from change in Key Personnel. In the event of Contractor's breach of Section 2.2, TransLink and the TLE Entity will be entitled to recover from Contractor all internal or external costs incurred by TransLink and the TLE Entity arising from such breach, without prejudice to any other rights it may have in respect of this Agreement or at law or in equity.

3.5 The Contractor shall ensure that all Key Personnel read, write, and speak fluent English.

**SCHEDULE B**

**FEES AND EXPENSES**

## 1.0 FEES

1.1 **Maximum Fees:** In no event will the total amount of Fees payable by any TLE Entity to the Contractor for the Services exceed **$[Maximum Fees] (excluding taxes)**. Fees are **exclusive** of expenses (refer to Section 3.0 of this Schedule B).

1.2 **Breakdown of Fees:** refer to the breakdown attached.

1.3 **Charge-Out Rates:** Fees are based on the charge-out rates set out below, determined on a dollar amount per hour and will be payable to the Contractor for those hours during which the Contractor is engaged in the performance of the Services.

| Position / Title | Hourly Charge-Out Rate |
|---|---|
| ♦ | $♦ |
| | |

1.3 **Charge-Out Rates:** Fees are based on the charge-out rates set out below, determined on a dollar amount per hour or day, and will be payable to the Contractor for those hours/days during which the Contractor is engaged in the performance of the Services, and in a proportioned amount of the daily rate for part days (7.5 hours being the equivalent of one day, unless otherwise agreed by a TLE Entity).

| Position / Title | Charge-Out Rates | |
|---|---|---|
| | Hourly Rate | Daily Rate |
| ♦ | $♦ | $♦ |
| | | |

1.4 **Escalation:** The Charge-Out Rates shall remain fixed for the Term of the Agreement.

## 2.0 INVOICING AND PAYMENT

2.1 The Contractor will submit to the applicable TLE Entity, on a monthly basis, a written claim for payment of Fees and Expenses setting out[1]:

2.1.1 the number of hours the Services were rendered by each person performing the Services, the work performed and each person's hourly charge-out rate ;

2.1.2 where the Fees include the cost of sub-contractors, itemization of the work performed on behalf of the Contractor by the sub-contractor with supporting documentation attached;

2.1.3 a listing of Expenses incurred during the invoice period, along with receipts or other documents verifying each Expense;

[1] Where the Services are performed both inside and outside of Canada, the invoice must separately identify the value of the Services by location.

2.1.4 any Goods and Services Tax (GST), payable as a separate item, and the Contractor's GST registration number; and

2.1.5 any applicable BC Provincial Sales Tax (BC PST), payable as a separate item, and the Contractor's BC PST registration number.

2.2 Invoices must be made out to the applicable TLE Entity listed below, reference the Contract No.♦ and PO No. ♦ and be delivered to the contact listed below and a copy to the business contact person listed on page 1 of this Agreement.

**South Coast British Columbia Transportation Authority (TransLink)**
ACCOUNTS PAYABLE
200 - 287 Nelson's Court
New Westminster, BC V3L 0E7
**Reference Contract or PO No. ♦**
And electronic copy to: accounting@translink.ca
If Services are be provided for Transit Police sent an electronic copy to finance@transitpolice.bc.ca

**British Columbia Rapid Transit Company Ltd. (BCRTC)**
ACCOUNTS PAYABLE
6800 – 14th Avenue
Burnaby, BC V3N 4S7
**Reference Contract or PO No. ♦**
And electronic copy to: apclerks@bcrtc.bc.ca

**West Coast Express (WCE)**
ACCOUNTS PAYABLE
Suite 295 – 601 West Cordova
Vancouver, BC V6B 1G1
**Reference Contract or PO No. ♦**
And electronic copy to: Analyn.engalan@translink.ca

**Coast Mountain Bus Company Ltd. (CMBC)**
ACCOUNTS PAYABLE
287 Nelson's Court – 6th Floor
New Westminster, BC V3L 0E7
**Reference Contract or PO No. ♦**
And electronic copy to: ap@coastmountainbus.com

## 3.0 REIMBURSABLE EXPENSE

3.1 Except as otherwise provided herein, TransLink will reimburse the Contractor at cost (without "mark-up") for reasonable out-of-pocket expenses (travel time is not deemed a reasonable out-of-pocket expense) incurred by the Contractor and necessary for the performance of the Services. Pre-approved Contractor travel expenses incurred shall be reimbursed in accordance with Section 3.2 herein.

3.2 **Contractor Travel Expenses**

This Section sets out the parameters for travel expenses that are eligible for charge or claim by the Contractor. Travel expenses that do not comply with this Section 3.2, may not be reimbursed by TransLink.

3.2.1 ***Travel – General:*** the Contractor should minimize travel expenses whenever possible. TransLink and TLE Entities do not allow any markup for travel expenses. Any incurred travel expenses will be provided at cost for full reimbursement. All invoices shall include an itemized listing supported by copies of the original bills,

invoices, expense reports and miscellaneous supporting data. Time for travel will not be reimbursed for the Contractor except with pre-approval in writing and shall not be charged at more than half rate.

3.2.2 ***Travel Insurance:*** TransLink and TLE Entities do not pay for any kind of travel insurance coverage for the Contractor.

3.2.3 ***City Travel:*** for daily travel to and from TransLink or TLE Entity office locations, hotel/accommodation, and the airport, where available, the Contractor shall use public transportation. Taxi transportation costs may be excluded as an authorized expense (under any Contract) where reasonable public transportation options exist.

3.2.4 ***Taxi:*** all taxi ride expenses will require receipts. The Contractor should make every effort to travel together to minimize journeys where applicable. TransLink and TLE Entities will only authorize taxi travel for journeys directly related to the Contractor's work. Taxi trips to and from restaurants/entertainment venues are not eligible for reimbursement.

3.2.5 ***Auto Mileage:*** where approved, a Contractor from outside the Metro Vancouver area (which includes Abbotsford, Mission and Chilliwack) may claim mileage reimbursed at TransLink's current mileage rate. (refer to the Province of BC CPPM Policy Chapter 10_Travel)

3.2.6 ***Air Travel:*** Air fares will be reimbursed based on the most direct route at coach class with the lowest rates. Upgrading (coach to a higher class) of airline tickets will only be reimbursed when approved in advance of purchase in writing by TransLink or the applicable TLE Entity, and only when the business schedule requires immediate travel, and only higher-class seats are available. Downgrading (exchange) of airline ticket where the Contractor receives any financial or personal gain is not permitted. If the Contractor's travel policy allows for business class travel, reimbursement will be made based on the coach/economy class fare for the same trip. Documentation of that coach/economy class fare must be provided for reimbursement. Travel arrangements should be made as early as possible to take advantage of advanced reservation rates. If a trip is postponed, reservations should be cancelled immediately, and TransLink or the applicable TLE Entity should be credited any value returned to the Contractor.

3.2.7 ***Combining Business Travel with Personal Travel:*** the Contractor may combine personal travel with TransLink or TLE Entity business only if the personal travel does not increase the cost to TransLink or the TLE Entity.

3.2.8 ***Accommodations:*** TransLink or the TLE Entity will reimburse hotel room fees at hotels that offer the BC governmental rate on the provincial website (refer to website: http://csa.pss.gov.bc.ca/businesstravel/ for questions regarding availability and access). TransLink must be advised and approve the choice of hotel, room, and rate in advance of travel and reservations. Room upgrades are not reimbursable. If the BC governmental rate is not offered or available, TransLink or the TLE Entity may reimburse hotel room fees at the standard rate based on single room occupancy. If requested by the accommodation, TransLink and the TLE Entity will provide a letter to the Contractor which authorizes hotels to provide rooms at a government rate. This authorization for reduced rates only applies to business travel. When a trip is being cancelled, TransLink and the TLE Entity will not reimburse hotel expenses which could have been avoided by prompt cancellation.

3.2.9 ***Meals:*** Meals will be reimbursed based on the actual cost up to the maximum Full Day Rate set out as **Employee Group III** (refer to the Province of BC CPPM Policy Chapter 10_Travel) per day of travel. Itemized receipts are required for all meals. In order to be reimbursed, meal receipts, or cash register tape must be submitted. TransLink may not reimburse credit card only receipts. TransLink and the TLE Entity shall not pay for alcoholic beverages. In lieu of itemizing meal expenses and submitting receipts, the Contractor may claim the standard per diem rate set out as **Employee Group III** (refer to the Province of BC CPPM Policy Chapter 10_Travel) for the duration of the travel.

3.2.10 ***Vehicle Rental:*** TransLink and the TLE Entity will only authorize expenses for vehicle rental in exceptional circumstances and only for economy class vehicle rental. Details should be provided of any

request for this reimbursement in a proposal. Contractors are expected to request the rental of an economy vehicle.

3.2.11 ***General Parking expenses:*** the Contractor should only charge for parking when approval of a rental vehicle has been provided by TransLink or the TLE Entity. Where pre-approved, a Contractor from outside the Metro Vancouver area (which includes Abbotsford, Mission and Chilliwack) may be reimbursed for parking when operating their own vehicle.

3.2.12 ***Other Business Expenses during Travel:*** supplies, photocopies and facsimile related expenses are not reimbursable. Where necessary, TransLink or the TLE Entity will provide the Contractor with reasonable access to business equipment at TransLink or TLE offices (or other location designated by TransLink or the TLE Entity).

3.2.13 ***Non-Allowable Travel Expenses:*** TransLink or a TLE Entity will not provide any reimbursement for the following:

- Any personal entertainment expenses including but not limited to movies rental, use of health club or spa facilities or other forms of entertainment;
- Baggage handling service fees; or
- Cellular phone, landline phone and long-distance call costs.

3.2.14 ***Other Source of Information:*** should the Contractor wish to include any travel expenses not addressed in this Section 3.2, submit a written request in a proposal submission for review and evaluation by TransLink and the TLE Entity . Any expense not included in these guidelines or pre-approved by TransLink's Strategic Sourcing & Contract Management Department is non-reimbursable.

## SCHEDULE C

## ADDITIONAL TERMS AND CONDITIONS

The following terms and conditions apply in addition to, and not in substitution of, any other terms and conditions contained in this Agreement, unless otherwise expressly stated herein.

### 1.0 INSURANCE

1.1 The Contractor shall, at its sole cost and expense, obtain and keep in force through the Term:

| | |
|---|---|
| 1.1.1 | *General Liability Insurance*, including, without limitation, contractual liability insurance and non-owned automobile insurance, against claims for person injury, death or property damage or loss howsoever arising out of the operations of the Contractor to be combined limit as may be reasonably required by TransLink from time to time but, in any case, not less than [ENTER AMOUNT I.E. ONE, TWO, FIVE] MILLION DOLLARS with respect to injury or death to a single person or in respect of any one occurrence concerning property. The following shall be added to this insurance policy as an Additional Insured:<br>• South Coast British Columbia Transportation Authority (TransLink)<br>• Coast Mountain Bus Company Ltd. (CMBC)<br>• British Columbia Rapid Transit Company Ltd. (BCRTC)<br>• West Coast Express Ltd. (WCE)<br>• TransLink Security Management Ltd. (TSML) |
| 1.1.2 | *Professional Liability Insurance* in an amount of not less than [ENTER AMOUNT I.E. ONE, TWO, FIVE] MILLION DOLLARS per claim covering the Contractor and any of its sub-contractors during the Term and for three years thereafter; |
| 1.1.2 | *Professional Liability Insurance* in an amount of not less than [ENTER AMOUNT I.E. ONE, TWO, FIVE] MILLION DOLLARS per claim covering the Contractor and any of its sub-contractors during the Term and for three years thereafter. Such policy shall provide coverage for claims arising in connection with this Agreement and shall include coverage for cyber liabilities including network security and privacy liability and related fines and penalties imposed; |

and provide TransLink with evidence of coverage in a form satisfactory to TransLink.

1.2 Each policy of insurance shall contain a provision requiring the insurer to give 30 days written notice of cancellation. The Contractor will give TransLink notice of any refusal to renew, or reduction or material change in coverage at the time the Contractor has been advised by its insurer or, if such changes have been initiated by the Contractor, at the time the Contractor has requested such changes of its insurer.

### 2.0 ENVIRONMENTAL MATTERS ♦**If Services include construction or other matters having a potential environmental impact, the following clauses apply –** ***otherwise delete this box in its entirety.***

2.1 *Conduct* – The Contractor shall perform the Services in a prudent and responsible manner with all due care and due diligence with respect to environmental matters. The Contractor will forthwith notify and provide information to TransLink concerning any failure of the Contractor to comply with environmental laws and regulations or whether the Contractor is the subject of any pending or, to the knowledge of the Contractor after due enquiry, potential, environmental proceeding in connection with the performance of the Services.

2.2 *Waste or nuisance* – The Contractor will not commit or suffer to be committed any waste or nuisance on the work site, or carry on any noxious, noisome or offensive act at the work site.

2.3 *Inspection* - Without relieving the Contractor of any of its obligations under this Agreement, the Contractor shall permit TransLink or any TLE Entity, its officers, employees, consultants, authorized representatives and agents to:

(a) visit and inspect the work site and the Contractor's operations;
(b) conduct tests and environmental assessments or appraisals, including taking and removing samples;
(c) examine and make abstracts from and copies of any relevant documents or records; and
(d) interview the Contractor's employees.

2.4 *Use of Hazardous Substances* - The Contractor shall not use the work site or permit it to be used, to generate, utilize, manufacture, refine, treat, transport, store, handle, transfer, produce or process hazardous substances or permit hazardous substances to be brought onto the work site except in compliance with all environmental laws and as permitted in writing by TransLink.

2.5 *Removal of Hazardous Substances* - The Contractor shall, upon substantial completion of the Services, promptly classify and remove all hazardous substances used or released by the Contractor or brought onto the work site by the Contractor or those acting under its authority or control, including, without limitation, removing any hazardous substances that have become affixed to, permeated within or accumulated on or within the work site or any other property.

2.6 *Insurance* - In addition to any other insurance requirements set out in this Agreement, the Contractor shall ensure its insurance policy(ies) cover loss or damage arising from pollution and any costs associated with such loss or damage, including actual legal fees and disbursements, consultant's fees and clean up costs.

2.7 *Indemnification* - In addition to any other indemnification provisions contained in this Agreement, the Contractor hereby agrees to indemnify and hold harmless TransLink, its subsidiaries, and their directors, officers, and employees from and against all losses, damages, penalties, fines, costs, fees and expenses (including actual legal fees and disbursements, consultant's fees and expenses and clean-up costs) resulting from any action, claim, order or environmental notice commenced or made pursuant to any environmental laws or concerning a release or alleged release of hazardous substances, and related to or as a result of the operations of the Contractor or those acting under its authority or control.

2.8 *Survival* – These provisions survive the expiration or termination of this Agreement.

## 3.0 SERVICES PERFORMED AS PART OF A FEDERAL FUNDING PROGRAM

The following terms and conditions apply in addition to, and not in substitution of, any other terms and conditions contained in this Agreement.

3.1 *Federal Government involvement* - The Contractor is aware of and acknowledges that His Majesty the King in Right of Canada, as represented by the Minister of Transport, (the "Federal Government") is or may be providing financial contribution to TransLink, which enables TransLink to proceed with certain projects and retain or continue to retain the Contractor to provide the Services which form a part of the such project (the "Project"). As a condition of funding, the Federal Government requires TransLink to ensure that each contract with third party contractors contains specific provisions and grants the Federal Government certain rights, obligations and authority.

3.2 *Exercise of rights and relationship* - The Contractor hereby consents to the Federal Government exercising the rights, obligations and authority as hereinafter contained and enforcing the provisions of this Agreement, despite the Federal Government not being a party to this Agreement. The Contractor acknowledges that the Federal Government is neither a decision-maker nor an advisor to the Project and TransLink is entering into this Agreement with the Contractor in its own right and not as an agent or in any way representative of, or subordinate to the Federal Government and the Contractor specifically acknowledges and is aware the TransLink does not have any authority to act for or assume any obligation or responsibility on behalf of the Federal Government.

3.3 *Indemnity* - The Contractor hereby agrees to indemnify and save harmless the Federal Government, its officers, employees and agents from and against all claims, liabilities and demands of any kind with respect to any injury to persons (including, without limitation, death), damage to or loss or destruction of property or infringement of rights caused by or arising directly from (i) the breach of any term or condition of this Agreement by the Contractor or its officers, employees or agents; or (ii) any negligent or wilful act or omission of the Contractor or its officers, employees or agents, in relation to the Project; provide that the Contractor shall have no obligation to indemnify the Federal Government or its officers directors, employees and agents from and against claims arising as a result of the negligent or wilful act or omission of the Federal Government or its officers, employees and agents in relation to the Project.

3.4 *Compliance with laws* - In addition to any other obligations with respect to compliance with laws, the Contractor hereby covenants and agrees to comply with all applicable labour, environmental, privacy and human rights legislation.

3.5 *Project inspection* – The Contractor shall provide access to its facilities and work location to permit the Federal Government to inspect the work in progress or inspect the work upon completion and shall provide all reasonable assistance to facilitate access for such purpose.

3.6 *Project reporting* - The Contractor shall track and report to TransLink each month (or at another frequency advised by TransLink) on any community benefits achieved by the Contractor for this Project, including apprentices, Indigenous peoples, women and youth.

3.7 *Video surveillance technology* – Where the Services, in whole or in part, relate to video surveillance technology or the Contractor is or may be involved in any component of video surveillance, including the planning or implementation of video surveillance, monitoring or recording activities, persons or conditions, or supplying, installing or testing any device, equipment or software for or in support of monitoring or recording activities, the Contractor hereby covenants and agrees:

(a) to respect, apply and comply with any privacy policy established by TransLink from time to time; and
(b) not to do or fail to do anything that would expose TransLink to any complaint or claim related to any breach of or failure to comply with any privacy policy established by TransLink from time to time or any applicable laws.

3.8 *Public Announcements* – The Contractor will not issue press releases or public announcements or conduct any official ceremony regarding its involvement in the Project without TransLink's prior written approval.

3.9 *Further assurances* - The Contractor agrees to execute and deliver such further documents and assurances, and take such further action as may be reasonably necessary from time to time in order to more effectively carry out the intent and purpose of this Agreement or meet the requirements of the Federal Government.

3.10 *Survival on termination* – The indemnity provisions, records, inspection and audit provisions, and project inspection provisions above will survive expiration or termination of this Agreement.

**4.0 SERVICES PERFORMED FOR THE SOUTH COAST BRITISH COLUMBIA TRANSPORTATION AUTHORITY POLICE SERVICE ♦If the Acquiring Department is TSML otherwise known as Transit Police or the Police Service, add the following section. Note that Schedule B invoicing email also needs to be updated.**

4.1 The parties acknowledge the Services are being performed by the Contractor for and at the direction of the South Coast British Columbia Transportation Authority Police Service (the "Police Service"), a designated policing unit established on behalf of TransLink.

## 5.0 SERVICES INVOLVING IT SECURITY

***Definitions***

5.1 "**TransLink Data**" means all information relating to TransLink and its affiliates and their authorized users, customer, contractors and service providers that: (i) is provided, collected or generated as part of the use or operation of the Subscription Software or the provision or receipt of the Subscription Services in connection with this Agreement; or (ii) arises from, collected through, created by or processed by the Subscription Software or Subscription Services, including any related metadata or other information reflecting the access or use of the Subscription Software or Subscription Services by or on behalf of TransLink or any authorized user. Personal Information is deemed to be TransLink Data.

5.2 "**Subscription Services**" means the Subscription Software-related application hosting services that the Contractor provides TransLink under this Agreement.

5.3 "**Subscription Software**" means collectively or individually the computer software programs for which the Contractor is providing the Subscription Services, including all: (i) tools used for configuration, and (ii) updates.

5.4 **Security Policies and Safeguards.** The Contractor shall establish and maintain administrative, technical, and physical safeguards designed to protect against the destruction, loss, unauthorized access or alteration of TransLink Data, including Personal Information, in the possession or under the control of the Contractor or to which the Contractor has access, which are: (i) no less rigorous than those maintained by the Contractor for its own information of a similar nature; (ii) no less rigorous than generally accepted industry standards, specifically the National Institute of Standards and Technology (NIST) Cybersecurity Framework, the Information Security Management Standard (ISMS) family of standards (ISO/IEC 27000 standard series), Cloud Security Alliance (CSA), or other equivalent information security frameworks (which specific guidelines may vary depending on the specific Subscription Software licensed and in all cases will be one of the foregoing or an equivalent information security framework) ; and (iii) required by applicable laws. The security procedures and safeguards implemented and maintained by the Contractor shall include, without limitation and without limiting the generality of the foregoing:

(i) user identification and access controls designed to limit access to TransLink Data to authorized users;

(ii) the use of appropriate procedures and technical controls regulating data entering the Contractor's network from any external source;

(iii) the use of encryption techniques, no less than the encryption techniques provided by the applicable industry standard (or equivalent information security framework set out above), when TransLink Data is transmitted or transferred into or out of the hosted environment, and at rest (that remains effective, uninterrupted, and active at all times);

(iv) physical security measures, including without limitation securing TransLink Data within a secure facility where only authorized personnel and agents will have physical access to TransLink Data;

(v) operational measures, including without limitation IT Service Management (ITSM) processes designed to ensure the correct and secure operations of information processing activities;

(vi) periodic employee training regarding the security programs referenced in this Schedule;

(vii) periodic testing of the systems and procedures outlined in this Schedule, which occurs at least once every 12 months during the Term and after any major changes to the systems or procedures;

(viii) implementation and use of real-time user audit security application logs are available to TransLink at all times during the Term. Such user audit security application logs are available

on the Subscription Software user interface accessible by TransLink (logging and export mechanism varies and shall be dependent on specific Subscription Software licensed);

(ix) penetration tests for the Subscription Software conducted at least: (A) annually; (B) on the occurrence of an Information Security Incident. On TransLink's request, the Contractor shall provide TransLink with an executive summary of each resulting report. The Contractor will take reasonable steps to mitigate any detected vulnerabilities. The Contractor will continually perform security scans: static, where application code and binaries are analyzed for security vulnerabilities and dynamic, where web application is scanned for vulnerabilities;

(x) regular security vulnerability testing and monitoring of electronic systems;

(xi) the use of 24/7 monitored leading industry information security monitoring tools and practices (such as monitored SIEM and IDS/IPS) to detect actual and attempted attacks on the Subscription Software and related systems; and

(xii) where the Contractor is required to erase electronic versions of TransLink Data under this Agreement, the Contractor shall comply with NIST800-88 or equivalent standards.

5.5 **Review of Controls.** Once in each 12-month period during the Term, the Contractor shall, at its cost and expense, engage a duly qualified independent auditor to conduct a review of the design and operating effectiveness of the Contractor defined control objectives and control activities in connection with the Subscription Services. The Contractor shall cause such auditor to prepare a SOC 2 Type II (Applicable to Single and Multi-Tenant Environments) report in accordance with the American Institute of Certified Public Accountants Statement on Standards for Attestation Engagements No. 18 (SSAE 18) or an equivalent standard, which may include ISAE 3402 (the "**Audit Reports**"). TransLink shall have the right to request and receive a copy of the Audit Reports and TransLink may share a copy of such Audit Reports with its auditors and regulators. The Contractor will remediate all material deficiencies identified in an Audit Report. Upon TransLink's request, the Contractor will confirm that material deficiencies identified in an Audit Reports have been remediated. The Contractor will provide information on the remediation of specified deficiencies identified in an Audit Report, provided that the Contractor is not required to provide information that would identify its other customers or compromise the security of the Contractor's systems.

5.6 **Security Incident Response.** In the event that the Contractor becomes aware that (i) the security of any TransLink Data or Personal Information has been compromised; (ii) any TransLink Data or Personal Information has been or is reasonably expected to be subject to access, use or disclosure not authorized by this Agreement (iii) any TransLink Data has been corrupted or lost due to any confirmed security incident; or (iv) any other security incident that has adversely impacted the confidentiality, availability, or integrity of the TransLink Subscription Services or the TransLink Data , such as a successful: (A) cybersecurity attack; (B) incident involving malicious code; (C) data breach; (D) breach of security safeguards; (E) denial of service attack; (F) botnet campaign; or (G) ransomware attack or other successful attempt to expose, alter, disable, destroy, steal or gain unauthorized access to or make unauthorized use of such software, hardware, network or systems. (an "**Information Security Incident**"), the Contractor shall: (A) promptly (and in any event within 24 hours of becoming aware of such Information Security Incident or sooner if required by applicable law), notify TransLink, in writing, of the occurrence of such Information Security Incident; (B) investigate such Information Security Incident and conduct a reasonable analysis of the cause(s) of such Information Security Incident; (C) provide periodic updates of any ongoing investigation to TransLink; (D) develop and implement an appropriate plan to remediate the cause of such Information Security Incident to the extent such cause is within the Contractor's control; and (E) cooperate with TransLink's reasonable investigation, including by providing prompt access to such records related to such Information Security Incident as TransLink may reasonably request and TransLink's efforts to comply with any notification and other regulatory requirements applicable to such Information Security Incident. The Contractor shall implement and maintain a program and incident response plan for managing Information Security Incidents and ensuring its compliance with this Schedule.

5.7 **Anti-Spam Requirements.** To the extent the Contractor sends commercial electronic messages, or installs computer programs, in providing the Subscription Software or otherwise in performing its obligations under

this Agreement, whether on its behalf, TransLink's behalf or otherwise, the Contractor shall comply with, and ensure all such commercial electronic messages are sent in accordance with, and all such computer programs are installed in accordance with, legislation commonly known as Canada Anti-Spam Law and all regulations made pursuant to such legislation and all other applicable laws.

# SCHEDULE D

# PRIVACY PROTECTION

**Definitions**

1. In this Schedule,
   (a) "**Contact Information**" means information to enable an individual at a place of business to be contacted and includes the name, position name or title, business telephone number, business address, business email or business fax number of the individual;

   (b) "**Privacy Course**" means the Government of British Columbia's online privacy training course, FOIPPA Foundations, available at www.gov.bc.ca/privacytraining;

   (c) "**Public Body**" means "public body" as defined in the FOIPP Act;

   (d) "**Service Provider**" means a person retained under a contract to perform services for a Public Body;

   (e) "**Third-Party Hosting Provider**" means a third party that provides a platform or hosting service through which the Contractor delivers the services under the Agreement and to whom Personal Information is not accessible and as such, for the purposes of this Schedule, is not considered a sub-contractor;

   (f) "**Third-Party Request for Disclosure**" means a subpoena, warrant, order, demand, or request from an authority inside or outside of Canada for the Unauthorized Disclosure of Personal Information to which the FOIPP Act applies;

   (g) "**Unauthorized Disclosure of Personal Information**" means disclosure of, production of, or the provision of access to Personal Information to which the FOIPP Act applies, if that disclosure, production, or access is not authorized by the FOIPP Act;

   and all other capitalized terms have the meaning ascribed to them in the Agreement.

**Purpose**

2. The purpose of this Schedule is to:
   (a) enable all TLE Entities to comply with their statutory obligations under the FOIPP Act with respect to Personal Information; and
   (b) ensure that, as a Service Provider, the Contractor is aware of and complies with the Contractor's statutory obligations under the FOIPP Act with respect to Personal Information.

**Acknowledgements**

3. The Contractor acknowledges and agrees that:
   (a) it is a Service Provider and, as such, the requirements and restrictions established by Part 3 of the FOIPP Act apply to the Contractor in respect of Personal Information;
   (b) unless the Agreement otherwise specifies, all Personal Information in the custody of the Contractor or a Third-Party Hosting Provider is and remains under the control of TransLink; and
   (c) unless the Agreement otherwise specifies or TransLink otherwise directs in writing, the Contractor may only collect, use, disclose or store Personal Information that relates directly to and is necessary for the performance of the Contractor's obligations, or the exercise of the Contractor's rights, under the Agreement.

**Collection of Personal Information**

4. Unless the Agreement otherwise specifies or TransLink otherwise directs in writing, the Contractor may only collect or create Personal Information that relates directly to and is necessary for the performance of the Contractor's obligations, or the exercise of the Contractor's rights, under the Agreement.

5. The Contractor must collect Personal Information directly from the individual whom the information is about unless:
   (a) TransLink provides Personal Information to the Contractor;
   (b) the Agreement otherwise specifies; or

(c) TransLink otherwise directs in writing.

6. Where the Contractor collects Personal Information directly from the individual whom the information is about, the Contractor must tell that individual:
   (a) the purpose for collecting the Personal Information;
   (b) the legal authority for collecting the Personal Information; and
   (c) the name and Contact Information of the individual designated by TransLink to answer questions about the Contractor's collection of Personal Information.

**Privacy Training**

7. The Contractor must ensure that each individual who will provide services under the Agreement that involve the access, collection or creation of Personal Information will complete, at the Contractor's expense, the Privacy Course prior to that individual providing those services. The Contractor must also ensure that, following successful completion of the Privacy Course, each individual will download and retain the course certification of completion.

8. The requirement in section 7 will only apply to individuals who have not previously completed the Privacy Course.

**Accuracy of Personal Information**

9. Where Personal Information is collected by the Contractor directly from the individual whom the information is about, the Contractor must make every reasonable effort to ensure the accuracy and completeness of any such Personal Information to be used by the Contractor or the particular TLE Entity to make a decision that directly affects that individual.

**Requests for Access to Personal Information**

10. If the Contractor receives a request for access to Personal Information from a person other than a TLE Entity, the Contractor must promptly advise the person to make the request to TransLink unless the Agreement expressly requires the Contractor to provide such access. If TransLink has advised the Contractor of the name or title and Contact Information of an official of TransLink to whom such requests are to be made, the Contractor must also promptly provide that official's name or title and Contact Information to the person making the request.

**Correction of Personal Information**

11. Where Personal Information is collected by the Contractor directly from the individual whom the information is about, the Contractor will comply with sections 12 to 15 inclusive, of this Schedule, as applicable.

12. Within five (5) Business Days of receiving a written direction from TransLink to correct or annotate any Personal Information, the Contractor must annotate or correct the information in accordance with the direction.

13. When issuing a written direction under section 12, TransLink must advise the Contractor of the date the correction request to which the direction relates was received by TransLink in order that the Contractor may comply with section 14.

14. Within five (5) Business Days of correcting or annotating any Personal Information under section 12, the Contractor must provide the corrected or annotated information to any party to whom, within one (1) year prior to the date the correction request was received by TransLink, the Contractor disclosed the information being corrected or annotated.

15. If the Contractor receives a request for correction of Personal Information from a person other than TransLink, the Contractor must promptly advise the person to make the request to TransLink and, if TransLink has advised the Contractor of the name or title and Contact Information of an official of TransLink to whom such requests are to be made, the Contractor must also promptly provide that official's name or title and Contact Information to the person making the request.

**Protection of Personal Information**

16. Without limiting any other provision of the Agreement, the Contractor must protect Personal Information by making reasonable security arrangements against such risks as unauthorized access, collection, use, disclosure, or disposal, including without limitation by ensuring that the integrity of the Personal Information is preserved. Without limiting the general nature of the foregoing sentence, the Contractor will ensure that all Personal Information is securely segregated from any information under the control of the Contractor or third parties to prevent unintended mixing of Personal Information with other information or access to Personal Information by unauthorized persons and to enable Personal Information to be identified and separated from the information of the Contractor or third parties.

17. For greater certainty, the Contractor must also:
    (a) possess organizational and technological safeguards that are appropriate to the nature, quantity, and sensitivity of the Personal Information;
    (b) identify any reasonably foreseeable internal and external risks to the security, confidentiality and integrity of the Personal Information that could result in a privacy or security event and shall assess the sufficiency of its safeguards to control such risks; and
    (c) restrict entry (including physical and/or electronic entry) and access (using appropriate security controls and intrusion detection) for any unauthorized persons to those areas of the Contractor's premises where the Personal Information is stored or processed.

**Storage of and Access to Personal Information**

18. The Contractor must comply with the requirements under the FOIPP Act concerning storage of Personal Information outside of Canada, including, if required by TransLink, by supporting TransLink with completion of such assessments as may be required by law.

19. The Contractor will not change the location where it stores Personal Information without receiving prior authorization from TransLink in writing.

20. The Contractor will not authorize or assist a Third-Party Hosting Provider to access any Personal Information without the prior written approval of TransLink.

21. Without limiting any other provision of the Agreement, the Contractor will implement and maintain an access log documenting all access to Personal Information, including a list of all persons that access any Personal Information. The Contractor will provide a copy of the access log to TransLink upon request.

**Retention of Personal Information**

22. The Contractor must establish and maintain information and records management, cataloguing and tracking systems with respect to both physical and electronic copies of documents containing Personal Information and such systems must meet or exceed applicable laws.

23. Unless the Agreement otherwise specifies, the Contractor must retain Personal Information until directed by TransLink in writing to dispose of it or deliver it as specified in the direction.

**Use of Personal Information**

24. Unless TransLink otherwise directs in writing, the Contractor may only use Personal Information if that use is for the performance of the Contractor's obligations, or the exercise of the Contractor's rights, under the Agreement. For clarity, unless the Agreement otherwise specifies or TransLink otherwise directs in writing, the Contractor must not anonymize, aggregate, or otherwise alter or modify Personal Information, including by converting Personal Information into non-personal information, or analyze Personal Information (whether by manual or automated means) for any purpose, including for the purpose of developing insights, conclusions, or other information from Personal Information.

**Metadata**

25. Where the Contractor has or generates metadata as a result of services provided to TransLink, where that metadata is Personal Information, the Contractor will:
    (a) not use it or disclose it to any other party except where the Agreement otherwise specifies; and
    (b) remove or destroy individual identifiers, if practicable.

**Disclosure of Personal Information**

26. Unless TransLink otherwise directs in writing, the Contractor may only disclose Personal Information to any person other than TransLink if the disclosure is for the performance of the Contractor's obligations, or the exercise of the Contractor's rights, under the Agreement.

27. If in relation to Personal Information, the Contractor:
    (a) receives a Third-Party Request for Disclosure;
    (b) receives a request to disclose, produce or provide access that the Contractor knows or has reason to suspect is for the purpose of responding to a Third-Party Request for Disclosure; or
    (c) has reason to suspect that an Unauthorized Disclosure of Personal Information has occurred in response to a Third-Party Request for Disclosure,

    subject to section 28, the Contractor must immediately notify TransLink.

28. If the Contractor receives a Third-Party Request for Disclosure described in section 27(a) or (b), but is unable to notify TransLink as required by section 27, the Contractor must instead:
    (a) use its best efforts to direct the party making the Third-Party Request for Disclosure to TransLink;
    (b) provide TransLink with reasonable assistance to contest the Third-Party Request for Disclosure; and
    (c) take reasonable steps to challenge the Third-Party Request for Disclosure, including by presenting evidence with respect to:
        (i) the control of Personal Information by TransLink as a Public Body under the FOIPP Act;
        (ii) the application of the FOIPP Act to the Contractor as a Service Provider to TransLink;
        (iii) the conflict between the FOIPP Act and the Third-Party Request for Disclosure; and
        (iv) the potential for the Contractor to be liable for an offence under the FOIPP Act as a result of complying with the Third-Party Request for Disclosure.

**Notice of Unauthorized Disclosure**

29. In addition to any obligation the Contractor may have to provide the notification contemplated by section 30.5 of the FOIPP Act, if the Contractor knows that there has been an Unauthorized Disclosure of Personal Information, the Contractor must immediately notify TransLink.

**Compliance with the FOIPP Act and Directions**

30. The Contractor must in relation to Personal Information comply with:
    (a) the requirements of the FOIPP Act applicable to the Contractor as a Service Provider, including any regulation made under the FOIPP Act and the terms of this Schedule; and
    (b) any direction given by TransLink under this Schedule.

31. The Contractor acknowledges that it is familiar with the requirements of the FOIPP Act governing Personal Information that are applicable to it as a Service Provider.

32. The Contractor will provide TransLink with such information as may be reasonably requested by TransLink to assist TransLink in confirming the Contractor's compliance with this Schedule.

**Notice of Non-Compliance**

33. If for any reason the Contractor does not comply, or anticipates that it will be unable to comply in any respect, with any provision in this Schedule, the Contractor must promptly notify TransLink of the particulars of the non-compliance or anticipated non-compliance and what steps it proposes to take to address, or prevent recurrence of, the non-compliance or anticipated non-compliance.

**Termination of Agreement**

34. In addition to any other rights of termination which TransLink may have under the Agreement or otherwise at law, TransLink may, subject to any provisions in the Agreement establishing mandatory cure periods for defaults by the

Contractor, terminate the Agreement by giving written notice of such termination to the Contractor, upon any failure of the Contractor to comply with this Schedule in a material respect.

**Interpretation**

35. In this Schedule, references to sections by number are to sections of this Schedule unless otherwise specified in this Schedule.

36. Any reference to the "Contractor" in this Schedule includes any subcontractor or agent retained by the Contractor to perform obligations under the Agreement and the Contractor must ensure that any such subcontractors and agents comply with the requirements of the FOIPP Act applicable to them.

37. The obligations of the Contractor in this Schedule will survive the termination of the Agreement.

38. If a provision of the Agreement (including any direction given by TransLink under this Schedule) conflicts with a requirement of the FOIPP Act, including any regulation made under the FOIPP Act, the conflicting provision of the Agreement (or direction) will be inoperative to the extent of the conflict.

39. The Contractor must comply with the provisions of this Schedule despite any conflicting provision of this Agreement or the law of any jurisdiction outside Canada.

**SCHEDULE E**

**CONFIDENTIALITY / NON-DISCLOSURE AGREEMENT**

THIS AGREEMENT made the _____ day of [Month], [Year]

BETWEEN:

**[LEGAL COMPANY NAME]. ,** of

(the "Recipient")

AND:

**SOUTH COAST BRITISH COLUMBIA TRANSPORTATION AUTHORITY**, having an office at 400 – 287 Nelson's Court, New Westminster, BC, V3L 0E7 Canada
("TransLink")

WHEREAS:

A. Recipient has been retained by TransLink and/or a TLE Entity to provide services for (the "Project");

B. In the course of performing the services for the Project, TransLink and/or a TLE Entity will be disclosing certain information (the "Information") to the Recipient, including its Personnel;

C. The Recipient has agreed to secure and maintain the confidentiality of all Information disclosed or made available to it by TransLink and/or a TLE Entity in accordance with the terms and conditions hereinafter set forth.

NOW THEREFORE THIS AGREEMENT WITNESSES that in consideration of the foregoing and other good and valuable consideration the Recipient covenants and agrees as follows:

1. The Recipient shall maintain a secret and confidential status at all times for any and all Information disclosed or made available to the Recipient on behalf of TransLink and/or a TLE Entity through its officers, employees or representatives. The Recipient shall be entitled to disclose the Information on a need to know basis to its employees employees and permitted subcontractors (collectively, the "Personnel") and shall cause the Personnel to maintain a secret and confidential status for the Information, and to otherwise comply with the terms and conditions of this Agreement.

2. The Recipient shall use the Information only for the purpose of providing the services for the Project and for no other use or purpose whatsoever. The Recipient shall use the Information only during the period commencing on the date of this Agreement and ending on the earlier of completion of the Project or the end Term identified in the contract, as may be amended from time to time (the "Information Use Period").

3. The Recipient shall at all times protect the Information with at least the same degree of care and confidentiality, but not less than a reasonable standard of care, which the Recipient uses for its confidential information that it does not wish disclosed to the public.

4. At the end of the Information Use Period or earlier upon request of TransLink and/or a TLE Entity, the Recipient must, as directed by TransLink and/or a TLE Entity, either return all copies of records containing any part of the Information to TransLink and/or a TLE Entity or permanently destroy all copies of records containing any part of the Information and confirm such destruction in writing to TransLink and/or a TLE

Entity. The Recipient shall ensure that at the end of the Information Use Period all Information has been fully removed from the Recipient's possession and control.

5. The Recipient agrees to use the Information in a professional manner. The Recipient agrees to document all uses, modifications, and application of the Information, providing upon request all documentation as well as access to applications, computer files and databases where the Information was used, for the purposes of data auditing and ensuring adherence to this Agreement.

6. Except as expressly permitted by this Agreement or as required by law, the Recipient shall not directly or indirectly disclose or make available any of the Information to any person, firm, company, entity or other party for any use whatsoever.

7. All Information copied or reproduced and any further copies, reproductions or facsimiles thereof shall be and remain the property of TransLink and/or the TLE Entity. Summaries or aggregations of the Information, in part or whole, shall also be considered Information as pertaining to this Agreement. The Recipient agrees that it will not acquire any right, title or interest in or to the Information.

8. TransLink and/or a TLE Entity or its designate shall have the right to access the premises, computer equipment and systems, and records of the Recipient at any time to audit the use of the Information during the Information Use Period, as well as after the Information Use Period to ensure all Information has been fully removed from the Recipient's possession and control as required by this Agreement. This section survives the expiry or termination of this Agreement.

9. The Recipient shall indemnify and hold TransLink and the TLE Entity (if applicable) harmless from all losses, damages, costs and expenses (including, without limitation, actual legal fees and disbursements) suffered by TransLink and the TLE Entity (if applicable)as a result, directly or indirectly, of any breach of the terms and covenants of this Agreement by the Recipient or its Personnel. This section survives the expiry or termination of this Agreement.

10. This Agreement shall be governed by and construed in accordance with the laws of the British Columbia, Canada. The parties attorn to the exclusive jurisdiction of the courts of the Province of British Columbia, Canada.

11. If any term or covenant of this Agreement is wholly or partially invalid or unenforceable, such term or covenant shall be severable and this Agreement shall be interpreted as if the invalid or unenforceable term or covenant had not been a part hereof.

12. The failure by either party to insist in any one or more instances upon the strict performance of any one of the covenants contained herein will not be construed as a waiver or relinquishment of such covenant. No waiver by either party of any such covenant will be deemed to have been made unless expressed in writing and signed by the waiving party.

13. This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior negotiations, proposals and agreements, whether oral or written, with respect to the subject matter hereof.

**IN WITNESS WHEREOF** the Recipient has executed this Agreement as of the day and year first above written.

**SOUTH COAST BRITISH COLUMBIA TRANSPORTATION AUTHORITY**

*Signature* *Date*
*Name:*
*Title:*

*Signature* *Date*
*Name:*
*Title:*

**[LEGAL COMPANY NAME]**

*Signature* *Date*
*Name:*
*Title:*

*Signature* *Date*
*Name:*
*Title:*

## SCHEDULE F

## SERVICE LEVEL AGREEEMENT

**Performance Measurements & Reporting Requirements**

The following performance measures are an integral part of this Agreement and will be used to measure the level of Service provided by the Contractor:

Upon the determination of the particular TLE Entity, the KPIs may be mutually adjusted, deleted or added as deemed appropriate.

The contract performance evaluation will be conducted in an objective manner on a regular basis but no less than annually.

The performance ratings are set out as follows wherein:

| POOR | AVERAGE | GOOD | EXCELLENT |
|---|---|---|---|
| 1 | 2 | 3 | 4 |

The expectation for all TLE Entities is that performance levels will have an average rating of "Good" (3), or above.

The particular TLE Entity and the Contractor will determine a strategy to correct the Contractor's performance if the performance falls below "Average" rating of (2) on any one of the KPIs.

| | **Deliverable Description** | **Always** | **Monthly** | **Annually** |
|---|---|---|---|---|
| **1.** | **Client Services** | | | |
| 1.1 | Ability to manage client case level with counsellor network | ✓ | | |
| 1.2 | Ability to manage client case level with counsellor network | ✓ | | |
| 1.3 | Non EFAP services provided in accordance with time requirement | ✓ | | |
| 1.4 | Client appointment offered within 72 hours | ✓ | | |
| **2.** | **Administrative** | | | |
| 2.1 | Invoices rendered in a timely manner | ✓ | | |
| 2.2 | Invoiced prices are accurate and consistent with contracted rates | ✓ | | |
| 2.3 | Quarterly Analysis Reports are rendered in a clear and timely manner no later than 30 days following the end of the respective quarter | ✓ | | |
| 2.4 | The Contractor shall provide Statistics of % of orders delivered on or before the agreed upon date and time. | ✓ | | |
| **3.** | **Customer Relations** | | | |
| 3.1 | The Contractor's account team is courteous and maintains professional conduct. | ✓ | | |
| 3.2 | The Contractor's account manager responds to TLE's request within 24 hours. | ✓ | | |

**[In addition, please refer to the reference document of this RFP for the expected SLA]**